

219 Cal.App.3d 1252, 1263-1264; *McMartin v. Childrens' Inst. Int'l* (1989) 212 Cal.App.3d 1393, 1408.)

Motion to Strike

In light of the court's ruling on the demurrer, the motion to strike is moot.

NORMAN ROSS DEYOUNG vs. KAISER FOUNDATION HEALTH PLAN, MEDICAL INC.; ET AL. Case No. CU25-10946

KAISER's Motion to Compel Arbitration

TENTATIVE RULING

Defendants KAISER FOUNDATION HEALTH PLAN, INC., THE PERMANENTE MEDICAL GROUP, and KAISER FOUNDATION HOSPITALS (together "KAISER") move to compel arbitration of self-represented Plaintiff NORMAN ROSS DEYOUNG JR.'s complaint relevantly alleging (1) violation of the Confidentiality of Medical Information Act, (2) medical negligence, (3) patient abandonment, and (4) intentional infliction of emotional distress.

At the May 27, 2026 hearing on this motion the court was informed that Plaintiff is in custody in connection with a criminal case and was declared incompetent to stand trial. The court is concerned that KAISER's service of notice of this motion on Plaintiff's home address on May 14, 2026 was not sufficient, despite that address being listed on the complaint, because Plaintiff may have been in custody at that time. Further, as Plaintiff not only appears not to have notice of this hearing but appears not competent to continue to represent himself at this time, the court finds that it is not presently appropriate to rule on KAISER's motion to compel arbitration.

This matter is continued to January 12, 2027 at 9:00 A.M. in Department 7. The court will rule on the motion to compel arbitration at that time if KAISER demonstrates that Plaintiff received proper notice of the motion and is again competent to litigate this case.

EBONAE WEBB vs. PACE SOLANO INC. Case No. CU26-00230

Motion to Compel

TENTATIVE RULING

Defendant PACE SOLANO's unopposed Motion to Compel is GRANTED. Plaintiff EBONAE WEBB shall serve full and complete verified responses without objections to

Defendant's Form Interrogatories, Set One, Special Interrogatories, Set One, and Requests for production of Documents, Set One, within 14 days of service of the Court's Order.

The Requests for Admission propounded by Defendant in Requests for Admission, Set One, to Plaintiff EBONAE WEBB shall be deemed admitted, pursuant to Code of Civil Procedure section 2033.280.

Plaintiff EBONAE WEBB pay sanctions in the amount of \$960.00 in favor of Defendant, pursuant to Code of Civil Procedure sections 2030.290, subdivision (c), and 2031.300, subdivision (c), and 2033.280, subdivisions (b) & (c), within 14 days of service of the Court's order.

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